EX-TEMPORE

ALBERTINA NGAATENDWE NZENZE
versus
MINISTER OF JUSTICE, LEGAL AND PARLIAMENTARY AFFAIRS
and
MINISTER OF HOME AFFAIRS
and
THE ATTORNEY GENERAL

HIGH COURT OF ZIMBABWE
DEME J
HARARE, 20 June, 2023, 28 January 2025, and 6 March 2026

Opposed Application

Mr. T. Chinyoka for the applicant.
Mr. M Chimombe for the respondents.

DEME J: On 28 January 2025, I dismissed this matter. The applicant sought the reasons for the order made. These are they.

The applicant approached this court seeking a *declarator* to the effect that sections 2, 3, 4, 5, 6, 7, 8 and paragraph 1 of the Schedule to the Harmful Liquids Act [*Chapter 9:10*] be declared invalid on the basis that they violate sections 49, 64, 66(2)(a) and 70(2) of the Constitution of Zimbabwe, 2013. The applicant also prayed that there be no order as to costs because this is public interest litigation.

The application is made in terms of section 85(1) (a) of the Constitution. According to the applicant, she intended to research harmful liquids such as kachasu, tototo, and mudzepete. She alleged that she is facing an impediment in the form of the Harmful Liquids Act, which she is challenging.

The present application is being opposed by the respondents on the basis that the Act sought to be impugned does permit the manufacturing, supply, possession, storing, drinking or using of the identified harmful liquids such as *kachasu*, *tototo* and *mudzepete* on the basis of a lawful excuse. On this footing, the respondents are of the view that the Act is constitutional. Further, the respondents allege that the applicant has failed to link the alleged

violations with the appropriate sections of the Constitution, rendering the application meritless.

Additionally, the respondents have argued that the rights established by the provisions concerned are not absolute and hence may be limited in terms of section 86 of the Constitution. The respondents further contended that the Harmful Liquids Act is subject to other pieces of legislation and hence the Act must be construed together with such other pieces of legislation.

At the initial hearing on 20 June 2023, I directed the parties to file supplementary heads of argument to narrow the identified issues for determination, which directive was adhered to. The Applicant applied for the amendment of the draft order. The application was not resisted by the Respondents. After the amendment, the draft order now reads as follows:

1. That section 3 of the Harmful Liquids Act [*Chapter 9:10*] gives any person with 'lawful excuse' the right to manufacture, supply, possess, store, drink or use any harmful liquid.

2. The failure to define 'lawful excuse' in the Harmful Liquids Act [*Chapter 9:10*] is unconstitutional in that it violates section 49 (1) of the Constitution.

3. The order of constitutional invalidity made in paragraph 2 above is hereby suspended for 12 months from the date of this order to enable the respondents to enact a law that defines and determines what constitutes "lawful authority" for the manufacture, supply, possession, storage, drinking, or use of any liquid designated as harmful in terms of the Harmful Liquids Act [*Chapter 9:10*].

   And consequently, it is ordered that:

4. That there be no order as to costs.

The applicant acknowledged that the respondents submitted that Section 3 of the Act has a provision for a lawful excuse. The applicant's contention remains that the Act does not define "lawful excuse". This vagueness, according to the applicant, does not put one at ease to conduct business freely, as one would not be clear on what is considered lawful and what borders on criminality.

The applicant stressed that this would affect her right to personal liberty as enshrined in section 49 (1) of the Constitution, in that a person facing criminal prosecution because of a

vague law would be deprived of their liberty arbitrarily and/or without just cause. The applicant relies on the case of *Chimakure & Ors* v *Attorney-General* 2013 (2) ZLR 466 (S) that recognised the principle of constitutional vagueness.

The applicant insisted that the respondents should define what "lawful excuse" means. The applicant, therefore, prayed that the application be granted with no order as to costs.

In response, the respondents argued that the proviso of lawful excuse permits acts that are otherwise prohibited if they are for a lawful cause. Regarding the term "lawful excuse" being vague, the respondents argued that what constitutes a lawful excuse varies with the intended use of the harmful liquids. The respondents argued that the applicant does not have to fear arrest as she avers that the liquids will be used for research purposes, a purpose which is within the confines of the law.

The respondents argue that it is not possible to give an exhaustive list of what constitutes "lawful excuse". It was argued that it rests on the applicant to ensure that the intended use of the harmful liquid is legal. The respondents thus argued that section 49 of the Constitution is not infringed. The respondents, therefore, prayed for the dismissal of the application with costs.

I do agree with the reasoning of the respondents. It is apparent that the rights are limited in terms of Section 86 of the Constitution. The applicant has failed to demonstrate that such limitation does not comply with the guidelines of Section 86 of the Constitution as amplified by the case law.

Further, the applicant has failed to demonstrate how the Harmful Liquids Act violates the rights established in terms of Sections 49, 64, 66(2)(a) and 70(2) of the Constitution. Additionally, the applicant failed to realise that the Act concerned does permit the manufacturing, supplying, possession, storing, drinking, or using of the harmful liquids on the basis of a lawful excuse. Examples of lawful excuse are found in various statutes, which the applicant fails to appreciate, particularly given that the Harmful Liquids Act is subject to other Acts of Parliament.

It is an established principle in our jurisdiction that words must be assigned their grammatical meaning unless this leads to repugnance or absurdity. Reference is made to the case *of Falcon Gold Zimbabwe* v *Pfura Rural District Council SC79-21* where the Supreme Court opined as follows:

> "The law on the interpretation of statutes and other legal documents is now well established in this jurisdiction. It is the duty of the court to give effect to every word which is used in a statute unless necessity or absolute intractability of the language employed compels the court to treat the words as not written – *Keyter* v *Minister of Agriculture* 1908 NLR 522. This is the golden rule of interpretation which, put otherwise, stipulates that the language in the document is to be given its grammatical and ordinary meaning, unless this would result in some absurdity, or some repugnance or inconsistency with the rest of the instrument – *Coopers and Lybrand & Others v Bryant* 1995 (3) SA 761, 767 (A). In *Chegutu Municipality v Manyora* 1996 (1) ZLR – 262 (SC), this Court remarked that there is no magic about interpretation and that words must be taken in their context.
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> [19] More recently, the Constitutional Court of Zimbabwe in *Chihava* v *The Provincial Magistrate Francis Mapfumo* CCZ 6/15 stated at pp 7-8 of the unreported judgment:
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> > 'The principles set out in the *dicta* cited above can aptly and instructively be summarized as follows:
> > i) the Legislature is presumed not to intend an absurdity, ambiguity or repugnancy to arise out of the grammatical and ordinary meaning of the words that it uses in an enactment.
> > ii) Therefore, in order to ascertain the true purpose and intent of the Legislature, regard is to be had, not only to the literal meaning of the words, but also to their practical effect.'"

Lawful excuse, in my view, must be construed in various contexts. It is difficult if not impossible, to exhaustively define the phrase "lawful excuse". The definition of such phrase must be dependent on the appropriate setting. Defining such a phrase may have the effect of limiting all situations contemplated by the legislature when it promulgated this piece of legislation.

The Act, is constitutional in my opinion. The basis for preventing harmful liquids is in the interest of public health and public safety contemplated in Section 86 of the Constitution. In the absence of regulation, people's health and safety may be at risk if liquids that have the potential to permanently damage the health and safety of the public are allowed to remain at large.

Consequently, the application was dismissed with no order as to costs.

DEME J. …….

Mutumbwa Mugabe and Partners, Applicant's Legal Practitioners.
Civil Division of the Attorney-General's Office, Respondents' Legal Practitioners.